

LW6165E: LAW OF TORT

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Law of Tort

Subject Code

LW - Law

Course Number

6165E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW5603 (only applicable to students who completed LW5603 before Sem A 2019/20)

Exclusive Courses

LW5603A, LW5603B, LW2103, LW2103A, LW2603, LW2603A & LW2603B

Additional Information

Nil

Part II Course Details

Abstract

This course aims to -

- examine the nature, scope and objectives of tort law and its interception with other fields of law such as contract and criminal law
- encourage students to discover the meaning and purpose of tort law, its origins, development and limitations and some of its major issues
- equip students with a sound knowledge of the substantive rules of tort law
- develop students':
 - research skills
 - analytical and problem-solving skills
 - effective written and oral communication skills
 - presentation skills and the abilities to express ideas in relation to issues in tort law
- develop an awareness of the social context in which the rules of tort law operate
- introduce basic practical skills and develop students' ability to advise and present innovatively on issues of liability in tort.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if DEC-A1 app.)	DEC-A1	DEC-A2	DEC-A3
1	Analytically and critically describe and explain the main substantive rules of tort law pertaining to the topics to be covered in the syllabus.	50	x	x	
2	Analyse and critically evaluate: - issues and concerns in the field of tort law - the operation of the substantive rules of tort law: - in terms of the objectives of tort law and the practical implications of the rules; - their social contexts and real-life situations; - in relation to the law of contract.	35		x	
3	Apply the principles of tort law to solve legal problems by: - researching issues of tort law and developing research skills - discover the issues and problems - analysing and resolving problems concerning issues of tort law within the social context - communicating their innovated solutions by writing clearly, coherently and accurately in their own words and in plain language.	15			x
4	Develop a strong ability and innovate way to lead a discussion in tort law and an awareness to discover the skills in advising in terms of tort law.			x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Seminar Students will acquire knowledge of the substantive rules of tort law pertaining to the topics to be covered in the syllabus. Preparation outside the class. Students will be given guidance on their reading and research for their lectures and tutorials. Students will, by responding to questions and performing exercises, develop their analytical and critical capabilities and discover important issues of liability pertaining to topics covered in the syllabus.	1	
2	Seminar Students will be introduced to issues and concerns and aspects of the operation of the substantive rules of tort law.	2	

3	In-Class Activity	Students will be expected to understand the principle, and be able to explain to his/her peers' substantive rules of tort law using his/her own examples. Reading of cases and other material and research Students will acquire practical knowledge of the substantive rules of tort law pertaining to the topics to be covered in the syllabus Students will be shown how legal problems are solved in real life situations by applying tort law. Students will be given topics in which they will scrutinise, analyse and evaluate issues and concerns in the field of tort law and provide innovated written answers. Students will discover by researching on issues of tort law. Students will be given selected topics in which they will scrutinise, analyse and evaluate issues and concerns in the field of tort law with written answers. Students will develop a habit of research.	3	
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4	In-Class Activity	Students will be shown how legal problems are solved in real life situations by applying tort law. Students will research issues of tort law and prepare presentation. Students will be given selected topics which they will scrutinise, analyse and evaluate issues and concerns in the field of tort law. Students will lead and be responsible for presentation and generate innovative discussions in the field of tort law.	4	
5	Reading	Reading will be assigned to prepare for all the seminars and in-class activities.	2, 3	

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("-" for nil entry)	Allow Use of GenAI?
1	In class assessments	1, 2, 3, 4	30	-	No

Continuous Assessment (%)

30

Examination (%)

70

Examination Duration (Hours)

2

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Examination: The use of Generative AI tools is not allowed.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in examination and an overall mark of 40% in order to pass the course. Coursework for this purpose means those ways in which students are assessed otherwise than by the end of semester examination. End of semester exam could be in the form of a traditional written exam or a take-home exam.

The portion of the overall mark allocated to performance/participation in inter-active in class activities will be assessed on the quality of the participation. Assessment criteria for those activities, their nature and their timing will be set out in the student guide/course manual and will be further expanded upon by the course leader.

The duration of the examination may last for 2 or 3 hours and it will be at the discretion of the course leader. The course leader will announce the duration of the examination in the first week of the course. Similarly, the course leader will announce whether the examination will be closed book or open book.

To enable the full benefit to be obtained from this course, students should attend all of the classes and activities including real-time interactive online format classes via Zoom.

Assessment will be formative to enable students to demonstrate their capacity to understand, analyse and apply rules and principles and summative to assess ability to synthesise primary and secondary material to solve novel problems.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in examination and an overall mark of 50% in order to pass the course. Coursework for this purpose means those ways in which students are assessed otherwise than by the end of semester examination. End of semester exam could be in the form of a traditional written exam or a take-home exam.

The portion of the overall mark allocated to performance/participation in inter-active in class activities will be assessed on the quality of the participation. Assessment criteria for those activities, their nature and their timing will be set out in the student guide/course manual and will be further expanded upon by the course leader.

The duration of the examination may last for 2 or 3 hours and it will be at the discretion of the course leader. The course leader will announce the duration of the examination in the first week of the course. Similarly, the course leader will announce whether the examination will be closed book or open book.

To enable the full benefit to be obtained from this course, students should attend all of the classes and activities including real-time interactive online format classes via Zoom.

Assessment will be formative to enable students to demonstrate their capacity to understand, analyse and apply rules and principles and summative to assess ability to synthesise primary and secondary material to solve novel problems.

Assessment Rubrics (AR)

Assessment Task

In class assessments (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of ability to articulate argument in an effective and clear way.

Ability to apply the law with effective communication skills.

Ability to complete examination questions and show ability of team work.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Ability to spot legal issues and to apply legal knowledge and legal principles to solve both problem and essay type questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

In class assessments (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstration of ability to articulate argument in an effective and clear way.
Ability to apply the law with effective communication skills.
Ability to complete examination questions and show ability of team work.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Ability to spot legal issues and to apply legal knowledge and legal principles to solve both problem and essay type questions.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

The nature and scope of tort law, the range of interest protected by tort law, comparison with law of contract and criminal law, the general theory of liability in negligence: Duty of Care, Breach of Duty, Causation and Remoteness of Damages; Defences, Statutory Breach of Duty, Occupier's Liability, Nuisance, Rylands v Fletcher; Overview of intentional and negligent torts; Employer's liability under the common law and defences; Vicarious liability & Employers Liability; Intentional torts - trespass to the person - assault, battery and false imprisonment; intentional infliction of physical harm to the person; trespass to chattels: conversion & detinue; trespass to land; Defamation - libel and slander, Defamation Ordinance (Cap. 21) and its defences.

Detailed Syllabus

- a. Introduction to the Law of Tort - tortious liability in General
- b. Foundations of Negligence - Duty of Care AND Breach of Duty
- c. Foundations of Negligence: Causation and Remoteness of Damage
- d. General Defences to Negligence
- e. Negligence : Pure Economic Loss AND Psychiatric Illness (Nervous Shock)
- f. Negligence Product Liability AND Omissions and Acts of Third Parties (& Rescuers)
- g. Negligence - Liability Relating to Premises - Occupier's Liability
- h. Nuisance: Private and Public AND The Rylands v. Fletcher Rule
- i. Employer's liability under the Common Law (Employer's liability for negligence AND Employers Vicarious liability) & Defences
- j. Sexual harassment under the Sex Discrimination Ordinance (Cap. 480)
- k. Intentional torts: Wrongful interference with goods (Trespass to chattels, conversion & detinue)
 1. Defamation- Libel & slander, Defamation Ordinance (Cap. 21) and its defences
- m. Revision

Reading List

Compulsory Readings

Title	
1	Nil

Additional Readings

Title	
1	No fixed textbooks are to be identified. The following are the appropriate reference books.
2	Essential reading
3	Lone, Fozia Nazir, Hong Kong Tort Law: Texts, Cases and Ordinances (Lexis Nexis Oct. 2014).
4	Supplementary Reading

5	Lone, Fozia Nazir, Tort Law in Hong Kong (Alphen aan den Rijn, the Netherlands: Kluwer Law International, Dec 2016).
6	Lone, Fozia Nazir, Kung Olivia, McCoy, Kim, (eds), Hong Kong Tort Law Cases, (Hong Kong: Wolters Kulwer) 2017.
7	R Glofcheski, Tort Law in Hong Kong (2nd edition) (Thomson: Sweet and Maxwell, 2012)
8	D K Srivastava and A D Tennekone: The Law of Tort in Hong Kong, 2nd edition by (Lexis Nexis: Butterworth, 2005 also 2014 ed).
9	V Bermingham & C. Brennan, Tort Law Directions (3rd edition) (Oxford University Press, 2012)
10	V Harpwood, Modern Tort Law, (7th ed, Routledge Cavendish) 2009
11	W. V. H. Rogers, Winfield and Jolowicz on Tort (18th Ed, Sweet and Maxwell/Thomson Reuters) 2010
12	Paula Giliker and Silas Beckwith, Tort (4th Ed, Sweet and Maxwell) 2011
13	P J Bokhary, N Sarony and D K Srivastava (eds), Tort Law and Practice in Hong Kong, (2nd edition) (Thomson: Sweet and Maxwell 2011). Also 2nd Ed 2011 Available
14	J Hodgson & J Lewthwaite, Tort Law Textbook (2nd edition) (Oxford University Press, 2007).
15	F A Trindade & P Cane, The Law of Torts in Australia (5th edition) (Oxford University Press, 2012).
16	M Lunney & K Oliphant, Tort Law: Texts and Materials (4th edition, Oxford University Press, 2010) Also 5th ed. 2013 1 law collection available
17	T Weir, An Introduction to Tort Law (2nd Ed., Oxford University Press, 2006).
18	T Weir, A Casebook on Tort (10thEd. Sweet and Maxwell, 2004).
19	J. Murphy, Street on Torts (13th edition Butterworths, 2012).
20	Ordinances
21	A working knowledge of, at least, the following Ordinances is fundamental to a successful study of the law of tort.
22	Employees Compensation Ordinance (Cap 282)
23	Employees' Compensation Ordinance (Cap. 282)
24	Occupational Safety and Health Ordinance (Cap 509)
25	Sex Discrimination Ordinance (Cap 480)
26	Defamation Ordinance, Cap. 21.
27	Misrepresentation Ordinance, Cap. 284.
28	Limitation Ordinance, Cap. 347.
29	The Factories and Industrial Undertaking Ordinance (Cap 59)
30	Civil Liability (Construction) Ordinance, Cap. 377.
31	Control of Exemption Clauses Ordinance, Cap. 71.
32	Conveyancing and Property Ordinance, Cap 219
33	Fatal Accidents Ordinance, Cap. 22.
34	Law Amendment and Reform (Consolidation) Ordinance, Cap. 23.
35	Occupiers Liability Ordinance, Cap. 314.
36	Sale of Goods Ordinance, Cap. 26.
37	Other material
38	Reference should be made to law reports both in Hong Kong and in other jurisdictions.
39	For Hong Kong reference should be made to:
40	The Hong Kong Cases (HKC)
41	The Hong Kong Law Reports and Digest (HKLRD)
42	Online Resources

43	In order to keep track of new developments on law of tort particularly in Hong Kong students are expected to use various library electronic resources on law including databases like LEXIS.com, HK Law Databases and Westlaw International. Please note this will improve student's research skills.
44	Reference should also be made to web-sites, for example The Times (newspaper) for its law reports. Simply reading textbooks will not provide sufficient up- to-date knowledge of developments in tort law that is essential for achieving good marks in this subject.